

Nebraska staged filing guide

Use only the current stage

Prepared for Alexandria Montgomery Example, case SYNTH-CR-25-002. This packet contains the first-stage motion only. It does not include a sealing motion. A section 29-3005 set-aside does not seal a record.

The two stages are separate filings. Ask the clerk for the signed set-aside order after it is granted. Only then request the adult sealing motion. Juvenile adjudications require the separate juvenile mechanism and cannot use adult CC 6:12.

Check the facts and obtain supporting records

Confirm the offense and charge date against the court file and Nebraska State Patrol criminal-history report. Request the report through nebraska.gov. Confirm conviction and sentence completion dates. Do not substitute the conviction date for the charge date. Correct discrepancies before signing.

For the first motion, verify the selected prostitution-related or other-offense statutory branch and the supplied basis and account. A prostitution-related offense may qualify where committed while the person was a trafficking victim or where participation was proximately caused by that status. For an other offense, the basis is direct result or proximate cause. Do not sign an inaccurate account.

Government documentation is not required to seek relief. Section 29-3005(4) also identifies affidavits or sworn testimony from attorneys, clergy, medical professionals, trained victim-services professionals or other professionals from whom you sought relevant assistance. Other sufficiently credible and probative evidence may be considered. The presumption concerns victim status, not every element of relief.

Required before filing and actual execution

REQUIRED_BEFORE_FILING: Review and complete your victimization account and obtain appropriate supporting material. Confirm with the original court its accepted execution procedure for the supporting account, including any oath or affidavit requirement. Do not treat the printed narrative as sworn testimony or an executed affidavit.

REQUIRED_BEFORE_FILING: For the first-stage motion, confirm with the actual convicting court the local filing and scheduling procedure, any prosecutor notice or service, who performs it, recipient, method, timing and any required notice or proof. Follow those directions and complete any resulting required component before filing. The later sealing clerk-notice procedure is not an instruction for the first stage.

REQUIRED_BEFORE_FILING: Personally sign and date only the motion for your current stage, after reviewing it. Dates and signatures remain blank for actual execution. Confirm any filing fee, payment procedure and applicable fee-waiver request with the clerk; a fee is not established in the adopted route. Fee waiver is available in principle under Neb. Rev. Stat. Sec. 25-2301.01.

REQUIRED_BEFORE_FILING for sealing: Obtain the actual signed trafficking set-aside order; compare its case, coverage and basis to your answers. Do not file if the prior order, all-charge coverage or continued public appearance is unconfirmed.

File and follow up

File the first-stage motion in the court of conviction. For this adult sample the supplied caption is DISTRICT Court, LANCASTER County. After relief is granted, file CC 6:12 in the sentencing court. For adult sealing the court notifies the county or city attorney and schedules the matter; do not complete a certificate for an act you have not performed. Keep the signed orders and check that public records are updated after sealing. A set-aside alone is not sealing.

Synthetic review sample

These sample facts are fictional and must not be filed. The court decides whether to grant relief. Use your actual reviewed facts when preparing a filing.